

Accordingly, we hold that a district court's denial of a claim of qualified immunity, to the extent that it turns on an issue of law, is an appealable "final decision" within the meaning of 28 U. S. C. § 1291 notwithstanding the absence of a final judgment.

IV

The Court of Appeals thus had jurisdiction over Mitchell's claim of qualified immunity, and that question was one of the questions presented in the petition for certiorari which we granted without limitation. Moreover, the purely legal question on which Mitchell's claim of immunity turns is "appropriate for our immediate resolution" notwithstanding that it was not addressed by the Court of Appeals. *Nixon v. Fitzgerald*, *supra*, at 743, n. 23. We therefore turn our attention to the merits of Mitchell's claim of immunity.

Under *Harlow v. Fitzgerald*, Mitchell is immune unless his actions violated clearly established law. See 457 U. S., at 818-819; see also *Davis v. Scherer*, 468 U. S. 183, 197 (1984). Forsyth complains that in November 1970, Mitchell authorized a warrantless wiretap aimed at gathering intelligence regarding a domestic threat to national security—the kind of wiretap that the Court subsequently declared to be illegal. *Keith*, 407 U. S. 297 (1972). The question of Mitchell's immunity turns on whether it was clearly established in November 1970, well over a year before *Keith* was decided, that such wiretaps were unconstitutional. We conclude that it was not.

The use of warrantless electronic surveillance to gather intelligence in cases involving threats to the Nation's security can be traced back to 1940, when President Roosevelt instructed Attorney General Robert Jackson that he was authorized to approve wiretaps of persons suspected of sub-

dispute. Accordingly, the propriety of a disqualification order—unlike a qualified immunity ruling—is not a legal issue that can be decided with reference only to undisputed facts and in isolation from the remaining issues of the case.